

[expand all]

Background

In 2006, the Council of Australian Governments' (COAG) acknowledged that agricultural chemicals and veterinary medicines (agvet chemical) regulation required reform and established a Ministerial Taskforce to develop an updated and harmonised national system for plastics and chemical regulation. The Productivity Commission (PC) was assigned to undertake a study to assist in this work.

In 2008 the PC released a report on the regulation of chemicals and plastics Productivity Commission Research Study on Chemicals and Plastics Regulation. In regards to agvet chemicals, the report found that because of inconsistent regulation between states and territories, fee-for-service businesses and agvet chemical users faced additional costs if they wished to operate across state boundaries.

In response COAG directed the Primary Industries Ministerial Council (now the Standing Council on Primary Industries (SCoPI)) to develop a proposal for a single, national framework to improve and effectiveness of the regulation of agvet chemicals.

Developing a proposal

The Product Safety and Integrity Committee (PSIC), a committee of state and territory representatives who were responsible for developing a proposal to the COAG reforms for agvet chemicals. This involved initially an assessment of material from previous studies and existing data. Secondly consultations with stakeholders were conducted through a series of working groups. After consultation with stakeholders, PSIC prepared and released a discussion paper in December 2009. A large number of formal submissions were received from stakeholders to further inform the policy development process. PSIC ceased in April 2012.

Introduction of the National Policy Framework

The feedback from the discussion paper enabled PSIC to draft the National Policy Framework which set out the broad policy principles and desired outcomes for the regulatory model. The [National Policy Framework for the Assessment, Registration and Control of Use of Agricultural and Veterinary Chemicals](#) was agreed by COAG on 16 August 2010.

Consultation Regulation Impact Statement

To further develop the details of the framework, a COAG consultation regulation impact statement (RIS) for A National Scheme for Assessment, Registration and Control of Use of Agricultural and Veterinary was prepared. The consultation RIS sets out a wide range of options for the single national framework consistent with the policy principles. The consultation RIS included options for control of use, as well as registration and assessment. The registration and assessment elements were delivered separately as part of the [Better Regulation of Agricultural and Veterinary Chemicals](#).

To further assist the development and implementation of the national framework, PSIC held formal stakeholder consultations and discussion in March 2011.

September 2012 Stakeholder Workshop

In September 2012 National Agvet System Policy Taskforce (NASPT) held a stakeholder workshop to provide stakeholders with an update on the COAG reforms. Stakeholders had the opportunity to discuss the proposed regulatory model for the framework and alternative options.

Delivery of COAG reforms

NASPT was created in April 2012 to finalise delivery of the COAG reforms for a single national framework for regulation of agvet chemicals. The taskforce successfully provided the agvet reform package (the proposed [regulatory model](#), [funding model](#) and [intergovernmental agreement \[IGA\]](#)) to COAG in December 2012. COAG noted that SCoPI would finalise the reform package. In May 2013, ministers confirmed the reform package and all states and territories and the Australian Government have now signed the IGA.

Regulation Impact Statement

A decision RIS provides a comprehensive cost benefit analysis of the options considered in developing the framework. The RIS informed COAG's and SCoPI's consideration of the reforms. Following the May 2013 SCoPI decision, the decision RIS was published on the Office of Best Practice Regulation website.

Agvet Chemical Regulation Committee

In March 2013, the Agvet Chemical Regulation Committee (ACRC) was established to oversee the implementation of reforms to agricultural chemicals and veterinary medicines (agvet chemicals) control of use regulation and identify areas for future reform.

Early Harvest Reforms

The Council of Australian Governments (COAG) agreed to a range of 'early harvest reforms' aimed at reducing the burden on business from the complex regulation of chemicals. The Business Regulation and Competition Working Group (BRCWG) is responsible for reporting on the progress of these reforms to COAG.

Of the 18 early harvest reforms, 10 were related to agvet chemicals, 7 of which were assigned to the Department of Agriculture and the Australian Pesticides and Veterinary Medicines Authority (APVMA). Five of the seven early harvest reforms have been completed. Reform 9, improving data protection provisions for agricultural product registrants, was considered under the Australian Government's [better chemical regulation reform](#).

Further, reform 3, maximum residue limit (MRL) administration, was progressed by the Department of Health and Ageing in conjunction with the department, the APVMA and the Food Standards Australia

New Zealand. This reform came into effect on 1 March 2011. This has seen a reduction in the delay between the APVMA's approval of a new chemical use and the publication of an MRL in the Food Standards Code, from between 12 and 18 months to a maximum of four months. This period may be further reduced in health emergencies.

Regulations were made in 2012 under the Agricultural and Veterinary Chemicals Code Act 1994 that implement elements of reforms on labelling, regulating low risk appraisal processes and administration of minor use and emergency permits. This relates to reforms 8, 10 and 12.

For further progress on the early harvest reforms, visit the [COAG website](#).

For further information

Phone the Switchboard: +61 2 6272 3933

Postal Address

Agvet Chemical Regulation Committee
Agricultural Productivity Division
Department of Agriculture and Water Resources
GPO Box 858
Canberra ACT 2601

Source: <https://www.agriculture.gov.au/agriculture-land/farm-food-drought/ag-vet-chemicals/domestic-policy/history-of-coag-reforms>